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**BENGALI ASSOCIATION
OF NORTH FLORIDA**

BENGALI ASSOCIATION OF NORTH FLORIDA

BY-LAWS

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INTRODUCTION:

The provisions of this document constitute the charter and the by-laws of Bengali Association of North Florida which shall govern the management and operations of the association unless changed by an amendment.

ARTICLE I: Name

The name of the organization shall be "BENGALI ASSOCIATION OF NORTH FLORIDA", hereinafter called BANF. Located in greater Jacksonville, its service area shall cover Northeast Florida and Southern Georgia. Its website is www.jaxbengali.org. Its business address shall be published in its newsletter at least once a year, and when the address is changed.

ARTICLE II: Charter, Non-Profit & Legal Compliance

Non-Profit Nature

- The Bengali Association of North Florida (BANF) is organized and shall be operated exclusively as a non-profit, charitable, cultural, educational, religious, and social organization within the meaning of Section 501(c)(3) of the Internal Revenue Code of the United States, or the corresponding section of any future federal tax code.
- No part of the net earnings of the Association shall inure to the benefit of, or be distributable to, its members, trustees, officers, or any private individual, except that the Association shall be authorized and empowered to pay reasonable compensation for services rendered and to make payments and distributions in furtherance of the purposes set forth in these bylaws.

Political and Legislative Activities

- No substantial part of the activities of the Association shall be the carrying on of propaganda, or otherwise attempting to influence legislation, except to the extent permitted by Section 501(c)(3) of the Internal Revenue Code.
- The Association shall not participate in or intervene in any political campaign on behalf of, or in opposition to, any candidate for public office, including the publishing or distribution of statements.

Compliance With Laws

- The Association shall comply with all applicable federal, state, and local laws and regulations, including but not limited to Internal Revenue Service (IRS) regulations, state non-profit corporation statutes, and reporting and filing requirements necessary to maintain its tax-exempt status.
- In the event of any conflict between these bylaws and applicable law, the applicable law shall prevail.

Private Benefit and Conflict of Interest

- The Association shall not be organized or operated for the private benefit of any individual or entity. Any potential or actual conflict of interest involving a member of the Executive Committee or Board of Trustees must be fully disclosed, and

such individual shall recuse themselves from any discussion or vote related to the matter.

- The Association may adopt a separate Conflict of Interest Policy consistent with IRS guidelines.

Financial Integrity and Transparency

- All funds of the Association shall be used solely to advance the objectives and purposes of BANF as stated in these bylaws. The Association shall maintain accurate financial records and ensure transparency in financial reporting to its members.
- The Executive Committee shall ensure timely filing of all required federal and state informational and tax returns necessary to maintain non-profit and tax-exempt status.

Dissolution

- Upon the dissolution of the Association, and after paying or making provision for the payment of all liabilities, the remaining assets of the Association shall be distributed exclusively to one or more organizations organized and operated for charitable, cultural, educational, or religious purposes and which qualify as exempt organizations under Section 501(c)(3) of the Internal Revenue Code.

Non-Discrimination

- The Association shall not discriminate on the basis of race, color, religion, gender, sexual orientation, age, national origin, disability, or any other characteristic protected by applicable law in any of its policies, programs, or activities.

Responsible Use of Artificial Intelligence and Data Privacy

- The Association recognizes that AI tools and digital platforms may be used by its officers, trustees, and volunteers in furtherance of its activities. All such use shall be responsible, ethical, and consistent with the Association's values and applicable law
- AI tools shall serve only as supportive tools and shall not replace human judgment in matters involving governance, financial decisions, elections, or member rights.
- In using AI technologies, the Association shall take reasonable steps to protect member privacy. Member data — including names, contact information, and any personally identifiable

information (PII) — shall be collected and used solely for Association purposes. The Association shall collect only the minimum information necessary, store it securely with access limited to authorized personnel, and shall not sell, share, or disclose it to any third party without the express consent of the affected member or as required by law. Members shall be promptly notified in the event of any data breach, in accordance with applicable law.

- No member PII data or confidential Association records shall be submitted to or processed by any external AI system or third-party platform without explicit authorization from the Executive Committee and, where applicable, the informed consent of affected members.
- Officers, trustees, and volunteers shall exercise discretion in all digital communications. Confidential Association information and member data shall not be shared through unsecured or public channels.
- Member data shall be retained only as long as necessary for its intended purpose or as required by law. Upon conclusion of an officer's or trustee's term, access to member data systems shall be promptly revoked and data securely disposed.
- The Executive Committee, in consultation with the Board of Trustees, may adopt supplemental AI and data privacy policies, to be reviewed periodically. Any violation of this section shall constitute a breach of conduct under Article IV and may result in disciplinary action, including removal from office.

ARTICLE III: Objectives

The Bengali Association of North Florida (BANF) shall fulfill its charter and operate exclusively for charitable, cultural, religious, educational, and social purposes, consistent with its tax-exempt status under Section 501(c)(3) of the Internal Revenue Code, by pursuing the following objectives:

- To organize, promote, and sponsor cultural programs and activities that celebrate Bengali heritage, language, arts, and traditions.
- To organize and support social, educational, and literary activities that foster learning, community engagement, and cultural exchange among members and the broader community.
- To organize and support religious and spiritual activities, conducted in an inclusive and non-discriminatory manner, that are of interest to the members of the Association.
- To promote the involvement, education, and leadership development of children and youth, encouraging their participation in cultural, educational, and community activities and fostering pride in Bengali heritage.
- To foster friendship, cooperation, and goodwill with other Indian and non-Indian organizations that share similar objectives, and to promote Bengali identity and heritage within the community at large.

ARTICLE IV: Code of Conduct

- **General Standard of Conduct**

All members, officers, trustees, volunteers, and participants in BANF activities shall conduct themselves in a manner that upholds the objectives, reputation, and best interests of the Association.

- **Respect and Inclusion**

BANF is committed to providing a welcoming, respectful, and inclusive environment. Discrimination, harassment, intimidation, or abusive behavior based on race, ethnicity, religion, gender, sexual orientation, age, disability, or any other protected characteristic shall not be tolerated.

- **Integrity and Ethical Behavior**

Individuals acting on behalf of BANF shall act honestly, responsibly, and in good faith, avoiding conflicts of interest and misuse of the Association's resources, name, or reputation.

- **Compliance with Bylaws and Policies**

All participants shall comply with these bylaws and any policies adopted by the Association, including financial controls, conflict-of-interest provisions, and event guidelines.

- **Enforcement**

Violations of this Code of Conduct may result in corrective action, disciplinary measures, or removal, as determined in accordance with the applicable provisions of these bylaws.

ARTICLE V: Membership

- Membership shall be open to all individuals 18 years or older who subscribe to the BANF objectives regardless of their native language, race, religion, sex or national origin. Each individual or family shall pay the necessary membership dues, as determined by the Executive Committee, and adhere to BANF's ideals to maintain **membership in good standing**
- Children under 18 years of age shall be automatically covered under the family membership as a "youth member". Such youth membership shall be non-voting. Other family members living in the same household and financially dependent on a member shall also be automatically covered under family membership and shall have full voting rights if over 18 years of age,
- A separate membership category shall be established for full time students, who are not covered under family membership, as defined above, with reduced membership dues as determined by the Executive Committee. Such members shall have full voting rights,
- A **Member in Good Standing** shall mean a member whose membership dues for the current membership year have been paid in full by the deadline established pursuant to these bylaws and who adheres to the bylaws, policies, and Code of Conduct of the Association in good faith and good spirit.
- Members who fail to pay their annual membership dues by the deadline established by the Executive Committee shall have their voting rights and eligibility to hold office suspended until such dues are paid in full.
- Each individual member who is 18 years of age or older and is a Member in Good Standing shall be entitled to **one (1) vote**.
- Family membership shall provide **one vote per eligible adult member** residing in the same household, provided each such individual meets the definition of a Member in Good Standing.
- The Executive Committee shall have the authority to establish additional categories of membership as and when appropriate, provided that such categories shall not include voting rights unless approved by a majority vote of the General Body.
- The Executive Committee, in consultation with the Board of Trustees, may suspend or terminate the membership of any member whose conduct is deemed contrary to the objectives or best interests of the Association.

- Prior to termination, the member shall be given written notice of the grounds for termination and an opportunity to present a written explanation or defense. A majority vote of the Executive Committee and the Board of Trustees shall be required for termination. The affected member may submit a written appeal to the Board of Trustees within fourteen (14) days of receiving notice of the decision. Upon review of the appeal and any additional information provided, the Board of Trustees may uphold, modify, or overturn the termination decision by a majority vote. In reviewing an appeal, the Board of Trustees may, if deemed appropriate, consult or seek input from the General Body in accordance with the meeting and voting provisions of these bylaws. The decision of the Board of Trustees following the appeal shall be final.
- Membership in the Association is personal and non-transferable and shall not be assigned or conveyed to another individual or entity.
- The **membership year** and operational calendar of the Association shall be defined **as one complete activity cycle** beginning immediately after the conclusion of the Association's last official event of the previous cycle and ending with the completion of the Association's final official event of the current cycle, which is typically Saraswati Puja, unless otherwise determined by the Executive Committee.
- The Association may collect and maintain personal information of members solely for purposes related to the administration, communication, and activities of the Association.
- Reasonable measures shall be taken to protect member information, and access shall be limited to Board of Trustees members, Executive Committee members, or authorized individuals acting on behalf of the Association.
- The Association shall not sell, distribute, or disclose membership lists or personal member information to external individuals or organizations, except as required by law or with the consent of the affected member.
- Member information shall be handled in accordance with applicable federal, state, and local privacy and data protection laws.

ARTICLE VI: Organization

- The organization shall consist of an elected Board of Trustees (BoT), an Executive Committee (EC), consisting of an elected President and appointed officers and a general body of members (during start-up, such offices may be filled through co-opting willing members),
- The function of the BoT shall be to oversee that the objectives of BANF are being met, advise and counsel the EC, and act as the final arbiter of issues arising within the organization. It shall also oversee that the assets of BANF are properly protected and utilized,
- The Executive Committee (EC) shall be the elected body of officers responsible for administering the affairs of the Association **in accordance with the powers, duties, and responsibilities defined in Article IX of these bylaws**. It is also responsible, along with the BoT, for the safe-keep of BANF's assets.

ARTICLE VII: Election

- Only members in good standing, as defined in Article V of these bylaws, shall be eligible to vote in or contest elections of the Association.
- The Association shall conduct two distinct types of elections:
 - Election of the President, and
 - Election of the Board of Trustees.
- All elections of the Association shall be conducted and overseen by the Board of Trustees (BoT). The BoT shall establish election procedures, ensure eligibility of candidates and voters, conduct voting, certify election results, and adjudicate election-related disputes. Any BoT member who is a candidate in an election shall recuse themselves from all election-related oversight and decision-making for that election.
- The Board of Trustees shall ensure that election procedures and timelines are communicated to the General Body in advance and that the election process is conducted in a fair, transparent, and impartial manner.
- The Board of Trustees may delegate administrative aspects of the election process to volunteers or subcommittees, provided that final authority and certification of results remain with the Board of Trustees.
- Voting may be conducted in person, electronically, or by other secure means as determined by the Board of Trustees (BoT). The BoT shall ensure that confidentiality, integrity, and fairness of the voting process are maintained at all times.
- A quorum for any election shall consist of at least one-third of all members in good standing. If quorum is not achieved within the prescribed voting period, the Board of Trustees may extend the voting deadline and/or authorize alternate secure electronic voting methods to achieve quorum, provided that such actions are documented and communicated to the General Body.
- The Association shall conduct a General Election to elect members of the Board of Trustees (BoT) every three (3) activity cycles (Refer Section VI.I for additional guidance)
 - Members of the Board of Trustees must be members in good standing and shall not simultaneously serve as elected President of the Association and shall not serve on the Executive Committee during their term as a Trustee.

- The President of the Association shall be elected once every two (2) activity cycles. The election for President shall be conducted before the conclusion of the incumbent President's second activity cycle and prior to the end of the President's term, in order to ensure adequate transition of leadership and responsibilities.
- The President-elect shall assume office in accordance with Article V but shall work in coordination with the incumbent President during the transition period beginning upon certification of election results to ensure continuity of operations, transfer of records, and orderly assumption of duties.
- All non-Presidential Executive Committee positions shall not be elected by the General Body. Such positions shall be appointed by the elected President.
- Appointments to all non-Presidential Executive Committee positions shall be announced within thirty (30) days of the President assuming office and prior to the commencement of regular activities for the activity cycle.
- All appointees to non-Presidential Executive Committee positions must meet eligibility requirements as defined in Articles IV and V and be members in good standing.
- The Board of Trustees shall have the authority to review Executive Committee appointments to ensure compliance with these bylaws and may raise concerns to the President if an appointment is deemed inconsistent with the objectives or best interests of the Association.
- The President may replace any appointed Executive Committee member during the term, provided such change is communicated promptly to the Executive Committee and the Board of Trustees."
- Appointment to a non-Presidential Executive Committee position shall not create any right of succession to the office of President.
- In the event that the office of President becomes vacant prior to the completion of the elected term, a special election shall be held to

elect a new President. The special election shall be conducted in accordance with the procedures outlined in this Article. The newly elected President shall serve for the remainder of the unexpired term, and such service shall not be deemed a full elected term unless two full activity cycles are completed.

- During the interim period prior to the election of a new President, the Vice President shall serve as Acting President solely for continuity of operations and shall not assume the full elected term of President.
- In the event that both the President and the Vice President resign, or are removed, or are otherwise unable to serve concurrently, the Board of Trustees (BoT) shall immediately assume responsibility for continuity of governance and shall arrange for an interim leadership structure as necessary. The BoT shall initiate and oversee a special election for the office of President in accordance with the election procedures set forth in these bylaws. Any interim arrangement shall be temporary in nature and shall remain in effect only until the special election is completed and a new President assumes office.
- Upon the election of a new President through a special election, the newly elected President shall have the authority to reconstitute the Executive Committee, in whole or in part, through appointment in accordance with these bylaws, if deemed necessary to ensure effective administration of the Association.
- Any individual serving as a member of the Executive Committee at the time a special election is called shall remain eligible to be a candidate in the special election for President, provided all eligibility requirements set forth in these bylaws are met.

Section VII.I – Term Limits, Re-Election, and Cooling-Off Periods

Board of Trustees

- Members of the Board of Trustees shall serve for a maximum term of six (6) years. For purposes of continuity and good governance, the initial Board of Trustees shall be elected on a staggered basis, with one (1) Trustee elected for a term of three (3) years and two (2) Trustees elected for terms of six (6) years. Thereafter, all Trustees shall be elected for six (6) year terms, with elections held every three (3) activity cycles to ensure that one or more Trustees rotate off and are replaced at each election.
- A former member of the Board of Trustees who has completed a full term of six (6) years shall be eligible for re-election only after a minimum gap of one (1) full term (six years) has elapsed following the completion of such service.

President

- The President shall be eligible for re-election for one (1) consecutive term only.
- No individual may serve as President for more than two (2) consecutive elected terms.
- After serving two (2) consecutive elected terms as President, an individual must observe a cooling-off period of at least one (1) full term before becoming eligible to run for the office of President again.

Non-Presidential Executive Committee

- An individual appointed to a non-Presidential Executive Committee position may serve no more than two (2) consecutive terms in the same position.
- After serving two (2) consecutive activity cycles in the same Executive Committee position, an individual must observe a cooling-off period of at least one (1) activity cycle before being reappointed to the same position.

- No person shall serve as a member of the Executive Committee in any capacity for more than six (6) consecutive activity cycles.
- Service in one Executive Committee position shall not be counted toward term limits for a different Executive Committee position, provided eligibility requirements are met.

Special Circumstances

- Notwithstanding the above, under exceptional circumstances, the Board of Trustees (BoT) may recommend a deviation from this rule solely for the office of President, including re-election of the incumbent President. Such exceptional circumstances and the reasoning thereof must be documented in writing and formally communicated to the General Body in advance.
 - Any such deviation shall require approval by the General Body at a duly convened meeting with quorum present, and shall be subject to a vote conducted in accordance with this Article.
 - At a minimum, participation in such vote must include at least one-half (1/2) of the members of the General Body in good standing.
 - Approval of any such deviation shall require a two-thirds (2/3) vote of the total number of votes cast.
- Service of less than one full activity cycle in any position, whether by appointment or special election, shall not be counted as a full term for the purposes of re-election or cooling-off requirements.
- In the event of a tie in any election, a run-off election shall be conducted between the tied candidates using procedures determined by the Board of Trustees.

ARTICLE VIII: Board of Trustees

- The Board of Trustees shall consist of no fewer than three (3) and no more than five (5) members, all of whom must be members in good standing. The Board of Trustees shall ordinarily consist of three (3) members.
- If the sitting Board of Trustees determines that an increase or decrease in the number of Trustees within the permitted range is necessary for effective governance, it may initiate a motion proposing such change, supported by documented reasoning, which shall be made available to the General Body prior to the vote. Any proposed change to the number of Trustees shall require approval by a simple majority vote of the General Body at a duly convened meeting before taking effect.
 - Such changes shall ordinarily take effect at the beginning of the next Board of Trustees election cycle, unless the General Body determines otherwise.
- The Board of Trustees shall serve in an oversight, advisory, and fiduciary capacity and shall not engage in the day-to-day operations of the Association, which are the responsibility of the Executive Committee in accordance with Article IX.
- Members of the Board of Trustees shall serve on a voluntary basis without compensation and shall not be personally liable for the obligations of the Association, except in cases of willful misconduct or gross negligence.

Responsibilities

The Board of Trustees shall carry out the following responsibilities across all areas of Association governance, however, the following sets out the primary responsibilities of the Board of Trustees as referenced across these bylaws. This list is intended to be illustrative and not exhaustive; the Board of Trustees shall also be bound by and accountable for all responsibilities, obligations, and authorities assigned to it in any other Article of these bylaws.:

- Oversee that the objectives of BANF are being met and advise and counsel the Executive Committee accordingly.
- Act as the final arbiter in matters of internal dispute, bylaw interpretation, and governance compliance, subject to the rights and powers of the General Body as defined in these bylaws.

- In exercising its arbitral or oversight functions, the Board of Trustees shall ensure due process, including notice and an opportunity to be heard, where applicable.
- Shall oversee elections of the Association in accordance with Article VII of these bylaws.
- Shall have fiduciary responsibility to ensure that the assets of the Association are protected, properly utilized, and used solely in furtherance of the Association's objectives and its 501(c)(3) status.
- Consult with the Executive Committee on fund management and authorize surplus transfers into the Contingency Fund within limits prescribed in Article XI.
- Oversee the Contingency Fund in a fiduciary capacity, maintain it at a prudent level, and report its status to the General Body periodically.
- Oversee the audit and financial review process in coordination with the Treasurer, and authorize special audits when circumstances warrant.
- Recommend and monitor corrective actions if audit findings identify material deficiencies or non-compliance.

ARTICLE IX: Executive Committee

Responsibilities

- The Executive Committee shall be responsible for the execution of the policies, programs, and activities of the Association in furtherance of its objectives, subject to these bylaws and the oversight of the Board of Trustees.
- The Executive Committee shall prepare and inform the proposed budget, oversee and authorize expenditures in accordance with the proposed budget, and ensure responsible financial stewardship in compliance with the Association's obligations as a tax-exempt organization under Section 501(c)(3) of the Internal Revenue Code.
- The Executive Committee shall plan, organize, and oversee cultural, social, educational, and community programs of the Association.
- The Executive Committee shall ensure compliance with these bylaws, applicable laws, and policies adopted by the Association.
- The Executive Committee shall report its activities and decisions to the General Body at regular intervals, including at the Annual General Meeting.
- In emergency situations requiring immediate action, the Executive Committee may act in the best interests of the Association, provided such actions are reported promptly to the Board of Trustees.
- All members of the EC shall serve on a voluntary basis, without any remuneration. Actual, reasonable and authorized cash expenses incurred for BANF activities will be reimbursed.

Structure

- The Executive Committee (EC) shall consist of the following core officers, all of whom must be members in good standing:
 - **President**
 - **Vice President**
 - **Treasurer**
 - **General Secretary**
- The outgoing President and the President-Elect of the Association, when such positions exist, shall serve as **ex-officio, non-voting members** of the Executive Committee for the purpose of continuity and transition. Such ex-officio members shall not have voting rights

within the Executive Committee but shall retain all rights as members of the Association.

- The Executive Committee may establish standing committees or ad-hoc committees as necessary to carry out the activities of the Association, including but not limited to cultural events, religious programs, food coordination, logistics, children's activities, fundraising, and outreach.
- Members to such committees shall be appointed by the President or the Executive Committee, as appropriate.
- The **President** shall:
 - Preside over meetings of the Executive Committee and the General Body
 - Serve as the principal representative of the Association
 - Ensure execution of decisions taken by the Executive Committee in accordance with these bylaws
 - The President shall **not** exercise unilateral authority except as expressly provided by these bylaws. Decisions of the Executive Committee shall be made collectively.
- The **Vice President** shall:
 - Assist the President in the discharge of duties
 - Perform specific tasks as delegated by the President or the Executive Committee
 - In the event of a vacancy in the office of President, the Vice President shall serve as **Acting President solely for continuity of operations**, in accordance with Article VII, until a new President is elected.
- The **Treasurer** shall:
 - Maintain custody of all Association funds and bank accounts
 - Record and track all revenues and expenditures of the Association
 - Prepare and present financial reports to the Executive Committee periodically and to the General Body at least annually
 - Ensure compliance with applicable financial and tax-related requirements

Financial controls and authorization requirements shall be governed by Article XI and related policies.

- The General Secretary shall:
 - Maintain accurate minutes of all Executive Committee and General Body meetings
 - Maintain official records, correspondence, and governing documents of the Association
 - Perform additional duties as delegated by the President or the Executive Committee

Removal, Resignation

- Any member of the Executive Committee or the Board of Trustees may resign by submitting written notice to the appropriate authority as defined herein. Such resignation shall take effect upon receipt unless a later effective date is specified.
- Any non-Presidential member of the Executive Committee may be removed for cause, including misconduct, neglect of duties, or actions contrary to the best interests of the Association, by a majority vote of the remaining members of the Executive Committee and the Board of Trustees acting jointly.
 - The affected individual shall be provided written notice of the grounds for removal and a reasonable opportunity to be heard prior to removal.
- The President may be removed only by the General Body for cause, by a simple majority (50% or more) of members in good standing. All votes shall be cast at a duly convened General Body meeting, in accordance with the quorum and voting provisions of Article X, including properly authorized electronic or mail-in votes.
 - Removal of the President shall result in a vacancy to be filled in accordance with Article VII.
- Any vacancy in a non-Presidential Executive Committee position arising due to resignation, removal, or incapacity shall be filled by appointment by the President in accordance with Article VII. Such appointee shall serve for the remainder of the term or until otherwise replaced in accordance with these bylaws.
- A member of the Board of Trustees may be removed for cause by a simple majority (50% or more) of members in good standing. All votes shall be cast at a duly convened General Body meeting, in

accordance with the quorum and voting provisions of Article X, including properly authorized electronic or mail-in votes.

- Any vacancy on the Board of Trustees shall ordinarily be filled by appointment by a majority vote of the remaining Trustees. If, at any time, the number of remaining Trustees is reduced to one (1), or if more than one (1) Trustee resigns or otherwise leaves office concurrently, the Board of Trustees shall initiate the election process in accordance with these bylaws. Any Trustee appointed or elected under such circumstances shall serve in an interim capacity until the next regularly scheduled Board of Trustees election.
- All removal actions under this Article shall be conducted in a fair and transparent manner, ensuring due process, including notice of allegations and an opportunity to respond.

ARTICLE X: Meetings

- Meetings of the Association shall include Annual General Meetings, Special General Body Meetings, and meetings of the Executive Committee and Board of Trustees, as applicable.
- The notice of any General Body Meeting shall include the proposed agenda. Only items included in the published agenda may be voted upon, except procedural matters.
- Meetings may be conducted in person, electronically, or in a hybrid format, provided that all participants are able to hear and participate in the proceedings.
- Minutes of all meetings shall be recorded and made available to members within a reasonable time.
- Meetings shall generally be conducted in accordance with Robert's Rules of Order, unless otherwise decided by the chair for procedural efficiency.

Quorum and voting requirements for meetings shall be governed by this Article and other applicable provisions of these bylaws, including Articles VII and VIII where relevant.

Annual General Meeting (AGM)

- The Annual General Meeting (AGM) shall be held at least once during each activity cycle, following the conclusion of the Association's final official event of the cycle.
- Notice of an Annual General Meeting shall be provided at least thirty (30) days in advance.

Special General Body Meeting

- A Special General Body Meeting may be called by the Executive Committee or upon written petition by at least twenty-five percent (25%) of members in good standing.
- Notice of a Special General Body Meeting shall be provided at least fourteen (14) days in advance.

Quorum and Voting

- A quorum for General Body meetings shall consist of the minimum percentage of members in good standing as specified elsewhere in these bylaws.
Non-members may attend General Body meetings but shall not have any voting privileges.
- A quorum for Executive Committee or Board of Trustees meetings shall consist of a simple majority of the members of the respective body, unless otherwise specified in these bylaws.
- A quorum of the relevant body as defined above shall be required for consideration of any resolution.
 - In addition, for resolutions requiring a vote of the General Body, participation in the vote shall include at least twenty-five percent (25%) of members in good standing.
 - A simple majority (50% or more) of the votes cast shall be required to pass a resolution, except as otherwise specified in these bylaws.
 - Properly authorized electronic or mail-in votes may be accepted where permitted by these bylaws, provided that voter eligibility, confidentiality, and the integrity of the voting process are maintained.
- For matters of a purely procedural or administrative nature that do not materially affect the governance, finances, or policies of the Association, the Executive Committee may adopt informal approval procedures, provided such actions are reported to the Board of Trustees and documented appropriately.
- Properly authorized mail/email-in votes shall be acceptable for the determination of both the quorum and the voting outcome, when a member cannot be present in person due to extenuating circumstances.
- Specific quorum or voting thresholds applicable to elections, removals, or bylaw amendments shall supersede the general provisions of Article X

ARTICLE XI: Finance

- The financial records and reporting of the Association shall align with the activity cycle of the Association, unless otherwise required by law.
- The financial records of the Association shall be subject to periodic review or audit as deemed appropriate by the Board of Trustees (Refer to XI.III).
- All funds and assets of the Association shall be used solely in furtherance of its objectives and in compliance with its tax-exempt status.
- The Executive Committee (EC), in consultation with the Board of Trustees (BoT), shall maintain BANF funds in bank accounts to optimize returns consistent with the objectives of BANF.
- Bank accounts shall be maintained by the Treasurer in the name of **BENGALI ASSOCIATION OF NORTH FLORIDA**. The Treasurer and the President shall have the authority to operate these accounts, subject to the approval and authorization requirements set forth in this Article.
- Any actual, reasonable, and authorized expense incurred by any member in the business of BANF shall be reimbursed upon submission of proper documentation, in accordance with policies approved by the Executive Committee.
- Any single expense item exceeding six thousand dollars (\$6,000) but less than fifteen thousand dollars (\$15,000), whether incurred through a single transaction or through multiple related or structured transactions, shall require approval by a simple majority (50% or more) of members in good standing. All votes shall be cast at a duly convened General Body meeting, in accordance with the quorum and voting provisions of Article X, including properly authorized electronic or mail-in votes.
- This threshold shall not apply to expenses directly related to approved cultural or religious events of the Association, including but not limited to artist performance fees, sound and technical services, venue booking, stage setup, and event-related logistics, provided such expenses are within the proposed event budget.
- Any single expense item exceeding fifteen thousand dollars (\$15,000), whether incurred through a single transaction or through multiple related or structured transactions, shall require approval by a two-thirds (2/3) majority of total members in good standing in accordance with the quorum and voting provisions of Article X, including properly authorized electronic or mail-in votes (Example: If

the Total number of Members in Good Standing is 120, then a proposed \$20,000 expenditure would require at least 80 votes cast in favor to be approved.).

- **This threshold and associated voting requirement shall be applicable to all categories of expenses without exception.**
- For any single expense item over two thousand dollars (\$2,000), whether incurred through a single transaction or through multiple related or structured transactions, consent of both the President and the Treasurer shall be required, either by both officers signing the BANF check or by maintaining a written authorization to this effect.
- The dual-signature requirement for expenses exceeding two thousand dollars (\$2,000) shall apply regardless of whether additional approvals are required under these bylaws.
- All monetary transactions shall be made by BANF checks or authorized electronic payments as far as possible, and all financial records shall be maintained in the custody of BANF for a minimum of three (3) years, or longer if required by law.

Section XI.I – Contingency Fund

- The Association shall establish and maintain a Contingency Fund for the purpose of addressing unforeseen expenses, emergencies, or extraordinary circumstances that may impact the operations, assets, or obligations of the Association.
- A separate bank account shall be maintained by the Treasurer in the name of **BENGALI ASSOCIATION OF NORTH FLORIDA**. The Contingency Fund account shall be operated jointly by the Treasurer and a Trustee designated by the Board of Trustees.
- The Contingency Fund shall be initially created through
 - Voluntary donations from members and
 - With seed funds derived from the surplus generated from the purchase of the idol in the 2024 activity cycle.
- Thereafter, at the conclusion of each two-activity-cycle periods (One single Term), the Board of Trustees may authorize the transfer of a portion of the remaining surplus funds from the completed cycle into the Contingency Fund, provided that such transfer shall not exceed twenty-five percent (25%) of the surplus amount for that cycle.
- The Board of Trustees shall endeavor to maintain the Contingency Fund at a prudent level based on the Association's historical operating expenses, anticipated obligations, and risk profile. The target level of the Contingency Fund shall be reviewed periodically by the Board of Trustees and reported to the General Body.
- In administering the Contingency Fund and determining any surplus transfers, the Board of Trustees shall ensure that sufficient operating funds remain available to enable the incoming President and Executive Committee to effectively commence their term, taking into account historical financial data, anticipated expenses, and customary start-of-cycle obligations of the Association.
- The Contingency Fund shall be maintained, safeguarded, and overseen by the Board of Trustees in a fiduciary capacity. Funds allocated to the Contingency Fund shall be accounted for separately from operating funds.
- The Contingency Fund shall be used solely for contingency purposes and shall not be utilized for routine operating expenses or planned programmatic activities.
- The Contingency Fund shall not be pledged, borrowed against, or encumbered for any purpose.
- Any expenditure from the Contingency Fund, regardless of amount, shall require authorization by a simple majority (50% or more) of

members in good standing, voting at a duly convened General Body or Special General Body meeting or through properly authorized electronic or mail-in voting, in accordance with Article IX.

- The process for such authorization shall be initiated by the Board of Trustees and conducted in accordance with the meeting and voting provisions of these bylaws.
- All contributions to and expenditures from the Contingency Fund shall be documented and reported to the General Body in a timely manner.
- All donations to, and expenditures from, the Contingency Fund shall be documented, accounted for, and retained in a manner consistent with applicable federal and state tax laws and the record-keeping and disclosure requirements applicable to organizations exempt under Section 501(c)(3) of the Internal Revenue Code, including those required for accurate reporting on IRS Form 990 or any successor form.
- Funds allocated to the Contingency Fund shall not be reclassified or returned to operating funds except by approval of the General Body.

Section XI.II – Charitable Activities and Contributions

- In furtherance of its objectives and in compliance with its tax-exempt status under Section 501(c)(3) of the Internal Revenue Code, the Bengali Association of North Florida (BANF) shall participate in and support charitable, educational, religious, humanitarian, and community-service causes. Such participation may include, but is not limited to, financial contributions, in-kind donations, volunteer service, or the organization and sponsorship of charitable activities such as food drives, community clean-up initiatives, and other service-oriented programs.
- Any charitable activities or contributions undertaken by the Association shall be consistent with its objectives, financial capacity, and applicable laws, and shall not result in private benefit to any individual.
- Such charitable contributions shall be made exclusively to organizations or initiatives that are organized and operated for charitable, educational, religious, or humanitarian purposes and that qualify under Section 501(c)(3) of the Internal Revenue Code, or to federal, state, or local government entities for public purposes.
- Charitable activities and contributions shall be selected and coordinated by the Executive Committee, subject to oversight by the Board of Trustees, and shall be reported to the General Body as part of the Association's regular communications or financial reporting.

Section XI.III – Audit and Financial Review

- The financial records and accounts of the Association shall be subject to an **independent financial review or audit** at least once during each six (6) activity cycle period, or more frequently if deemed necessary by the Board of Trustees.
- Any audit or financial review shall be conducted by a **qualified individual or firm** who is **not a member of the Executive Committee or the Board of Trustees**, and who has no material conflict of interest with the Association.
- The audit or financial review shall include, at a minimum:
 - verification of income and expenditures,
 - review of bank accounts and balances,
 - examination of internal controls and authorization procedures, and
 - confirmation that funds have been used in accordance with the Association's objectives and applicable laws.
- The Board of Trustees shall be responsible for initiating and overseeing the audit or financial review process, in coordination with the Treasurer, and for ensuring timely completion.
- A summary of the audit or financial review findings shall be presented to the Executive Committee and **reported to the General Body**, including at the Annual General Meeting, along with any recommendations for corrective or preventive action.
- If the audit or financial review identifies material deficiencies, irregularities, or non-compliance, the Board of Trustees shall recommend appropriate corrective actions and monitor their implementation.
- The Board of Trustees may authorize a **special audit or financial review** at any time if circumstances warrant, including but not limited to suspected financial irregularities, significant changes in financial activity, or transition of key financial officers.

Section XI.IV – Conflict of Interest

- Members of the Board of Trustees (BoT), Executive Committee (EC), and any individual acting on behalf of the Association shall conduct their affairs in a manner that avoids actual, potential, or perceived conflicts of interest and shall act at all times in the best interests of the Association.
For purposes of this Article, **family member** shall include spouse, domestic partner, parents, children, siblings, in-laws, or any individual residing in the same household.
- No member of the Board of Trustees or Executive Committee, nor any of their family members, shall:
 - receive compensation, direct or indirect, from the Association for goods or services provided to the Association,
 - participate in or influence any decision involving a transaction in which they or their family members have a financial interest, or
 - use their position to secure personal financial benefit or preferential treatment.
- This prohibition shall apply to contracts, reimbursements beyond standard member reimbursements, procurement of goods or services, and allocation of Association funds.
- Any individual covered by this Article who becomes aware of a potential or actual conflict of interest shall **promptly disclose** the nature of the conflict in writing to the Board of Trustees or Executive Committee, as applicable.
- Upon disclosure of a conflict:
 - the individual shall **recuse themselves** from all discussion, deliberation, and voting related to the matter, and
 - the remaining disinterested members of the relevant body shall determine whether a conflict exists and how the matter shall be handled.

Such determinations and recusals shall be documented in the meeting minutes.

- If the Board of Trustees determines that a transaction involving a potential conflict is unavoidable and demonstrably in the best interests of the Association, such transaction may proceed only if:
 - full disclosure has been made,
 - the conflicted individual has fully recused themselves, and

- the transaction is approved by a majority of disinterested members of the Board of Trustees.
- Members of the Board of Trustees and Executive Committee shall annually acknowledge, in writing, their understanding of and compliance with this Conflict of Interest policy.
- Violations of this Article may result in corrective action, including removal from office or committee assignments, in accordance with the applicable provisions of these bylaws.

ARTICLE XII: Amendments

- Any member in good standing may propose an amendment to these bylaws by submitting the proposed amendment in writing to the Executive Committee.
- Upon receipt of a proposed amendment, the Executive Committee shall review the proposal and, in consultation with the Board of Trustees, determine whether the proposed amendment is consistent with the objectives and charter of BANF and compliant with applicable federal, state, and local laws.
- The full text of any proposed amendment, along with any explanatory information deemed appropriate, shall be provided to all members at least thirty (30) days in advance of the meeting or voting deadline at which the amendment is to be considered.
- An amendment to these bylaws shall be adopted only upon approval by a simple majority (50% or more) of members in good standing. All votes shall be cast at a duly convened General Body meeting or through properly authorized electronic or mail-in voting, in accordance with the quorum and voting provisions of Article X.
- Upon adoption, amendments shall take effect immediately unless otherwise specified in the amendment. All approved amendments shall be promptly communicated to the membership and incorporated into the official records of BANF.

Major Amendments

- For purposes of these bylaws, a major amendment shall include any proposed change that materially affects the governance structure, powers or composition of the Board of Trustees or Executive Committee, member rights or obligations, financial controls, election procedures, or the tax-exempt status of the Association.
- When the Board of Trustees determines that a proposed change constitutes a major amendment, the Board of Trustees shall initiate the amendment process. Any such major amendment shall be fully

aligned with these bylaws and applicable laws and shall be subject to the same notice, review, quorum, and approval requirements applicable to all amendments under this Article.

- No major amendment shall take effect without approval of the General Body in accordance with this Article and Article IX.

Protest of Proposed Amendments

- Any member in good standing may submit a formal protest regarding a proposed amendment, provided such protest is submitted in writing within the notice period specified under this Article.
- Upon receipt of a protest, the Board of Trustees or the Executive Committee may determine that additional deliberation by the membership is warranted and may convene a Special General Body Meeting for the purpose of addressing the protest and considering the proposed amendment.
- Such meeting shall be conducted in accordance with the notice, quorum, and voting requirements of Article IX, and the General Body may, by resolution:
 - affirm the proposed amendment as presented,
 - approve the amendment with modifications, or
 - defer or reject the proposed amendment.
- Any resolution adopted pursuant to this Section shall be binding and shall determine whether and how the proposed amendment proceeds under this Article.

Interim Amendments for Legal Compliance

- In the event that an amendment is required to maintain legal or regulatory compliance, the Executive Committee, with the concurrence of the Board of Trustees, may adopt an interim amendment. Any such interim amendment shall be presented to the General Body for ratification at the next duly convened General Body meeting.

ARTICLE XII: Miscellaneous

No Ownership Interest

- No member of the Association shall have any ownership or proprietary interest in any of the assets or property of the Association.

Dissolution

- Upon the dissolution of the Association, after payment or provision for payment of all liabilities of the Association, the remaining assets shall be distributed exclusively to one or more organizations organized and operated for charitable, religious, or educational purposes and qualifying as tax-exempt organizations under Section 501(c)(3) of the Internal Revenue Code, or to a federal, state, or local government for a public purpose, as determined by the General Body.

Limitation of Liability

- To the fullest extent permitted by law, no member, officer, Trustee, or Executive Committee member of the Association shall be personally liable for the debts, obligations, or liabilities of the Association.
- Nothing in these bylaws shall eliminate or limit the liability of any individual for acts or omissions involving wilful misconduct, gross negligence, fraud, or breach of fiduciary duty, as determined in accordance with applicable law.

Indemnification

- To the fullest extent permitted by law, the Association shall indemnify any current or former member of the Board of Trustees or Executive Committee against expenses, judgments, fines, and amounts paid in settlement reasonably incurred in connection with any proceeding arising from service to the Association, provided such individual acted in good faith and in a manner reasonably believed to be in the best interests of the Association.

Severability

- If any provision of these bylaws is held to be invalid or unenforceable, such determination shall not affect the validity or enforceability of the remaining provisions.

Governing Law

- These bylaws shall be governed by and construed in accordance with the laws of the state in which the Association is incorporated.

Members in good standing may, upon reasonable written request, inspect the governing documents, approved bylaws, and non-confidential financial reports of the Association, in accordance with applicable law.